

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
JEAN PIERRE,

Plaintiff,

-against-

Index Number

Date Purchased:

THE CITY OF NEW YORK, ZHANE WALSH, Tax
Registry No. 974644, JOSEPH MELE, Tax Registry
No. 973120, JOSEPH HAYWARD, Tax Registry No.
923936, MELISSA CLARK, Tax Registry No.
932472, HUNTER NUZZI, Tax Registry No.972142,
JOHN DOE 1-3, representing currently unknown
Police Officers, all being employees of the City of
New York Police Department,

SUMMONSPlaintiff designates Kings County
as the place of trial.The basis of the venue is place of occurrence.
Plaintiff resides in Brooklyn, New York
Kings County

Defendants.

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YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve
a copy of your answer on the Plaintiff's attorneys within twenty days after the service of this
Summons, exclusive of the day of service (or within thirty days after service is complete if this
summons is not personally delivered to you within the State of New York); and in case of your
failure to appear or answer, judgment will be taken against you by default for the relief demanded
in the Complaint.

Dated: October 9, 2024

Brooklyn, New York

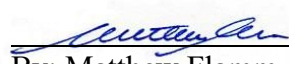
Defendants' Address:
CITY OF NEW YORK
100 Church Street
New York, New York 10007

MELISSA CLARK
JOHN DOE 1-3
One Police Plaza
New York, New York 10038

JOSEPH HAYWARD
Office of the Chief of the Department
One Police Plaza
New York, New York 10038

Attorney for Plaintiff
Law Office of Matthew Flamm
26 Court Street, Suite 2511
Brooklyn, New York 11242
(917) 495-2331

ZHANE WALSH
JOSEPH MELE
HUNTER NUZZI
71st Precinct
421 Empire Boulevard
Brooklyn, New York 11225


By: Matthew Flamm

Notice: The nature of this action is for civil rights violations under the United States Constitution and for unlawful arrest
and imprisonment, malicious prosecution, based on incidents beginning on August 16, 2023.

The relief sought: compensatory and punitive damages in an amount to be fixed at trial; the costs and disbursements
herein; attorney's fees under 42 U.S.C. §1988; and Upon your failure to appear, judgement will be taken against you by
default for the sum sought with interest from on August 16, 2023

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

-----X

JEAN PIERRE,

Plaintiff,

VERIFIED COMPLAINT

-against-

Index No.

THE CITY OF NEW YORK, ZHANE WALSH, Tax
Registry No. 974644, JOSEPH MELE, Tax Registry No.
973120, JOSEPH HAYWARD, Tax Registry No. 923936,
MELISSA CLARK, Tax Registry No. 932472, HUNTER
NUZZI, Tax Registry No. 972142, JOHN DOE 1-3,
representing currently unknown Police Officers, all being
employees of the City of New York Police Department,

Defendants.

-----X

Plaintiff, JEAN PIERRE, by his attorneys, THE LAW OFFICE OF MATTHEW
FLAMM, complaining of Defendants, THE CITY OF NEW YORK (hereinafter "CITY"),
JOSEPH HAYWARD, ZHANE WALSH, JOSEPH MELE, MELISSA CLARK, HUNTER
NUZZI, and JOHN DOE 1-3, alleges the following as his Verified Complaint:

Nature of the Action

1. This action arises from Defendants' unlawful arrest, use of force, and prosecution
of Plaintiff, Jean Pierre, beginning on August 16, 2023. Mr. Pierre's constitutional rights were
violated and he suffered the trauma, humiliation, and fear of, among other things, being publicly
accosted, assaulted, and arrested. Mr. Pierre seeks compensatory and punitive damages.

Parties

2. At all times hereinafter mentioned, Plaintiff JEAN PIERRE was and still is a
resident of the County of Kings, City and State of New York.

3. Plaintiff, PIERRE, is a Haitian-American male who was twenty-four years of age at the time of the incidents complained of herein.

4. At all times hereinafter mentioned, Defendant, CITY OF NEW YORK (hereinafter "CITY"), was and still is a municipal corporation organized and duly existing under and pursuant to the laws of the State of New York.

5. At all times hereinafter mentioned, Defendant CITY, established and maintains a Department of Police as a constituent department or agency which act as its agent in the area of law enforcement.

6. At all times relevant, the City of New York employed the individual Defendants more fully identified below.

7. At all times hereinafter mentioned, Defendant JOSEPH HAYWARD, Tax Registry No. 923936 ("HAYWARD"), was employed by the New York City Police Department.

8. At all times hereinafter mentioned Defendant HAYWARD was acting within the scope of his employment as a member of the New York City Police Department.

9. At all times hereinafter mentioned Defendant HAYWARD was acting under color of his authority as Commanding Officer of the 71st Precinct.

10. At all times hereinafter mentioned, Defendant ZHANE WALSH, Tax Registry No. 974644 ("WALSH"), was employed as a police officer by the New York City Police Department.

11. At all times hereinafter mentioned Defendant WALSH was acting within the scope of her employment as a Police Officer.

12. At all times hereinafter mentioned Defendant WALSH was acting under color of her authority as a Police Officer in the 71st Precinct.

13. At all times hereinafter mentioned, Defendant JOSEPH MELE, Tax Registry No. 973120 (“MELE”), was employed as a police officer by the New York City Police Department.

14. At all times hereinafter mentioned Defendant MELE was acting within the scope of his employment as a Police Officer.

15. At all times hereinafter mentioned Defendant MELE was acting under color of his authority as a Police Officer in the 71st Precinct.

16. At all times hereinafter mentioned, Defendant MELISSA CLARK, Tax Registry No. 932472 (“CLARK”), was employed by the New York City Police Department.

17. At all times hereinafter mentioned Defendant CLARK was acting within the scope of her employment as a member of the New York City Police Department.

18. At all times hereinafter mentioned Defendant CLARK was acting under color of her authority as a Lieutenant in the 71st Precinct.

19. At all times hereinafter mentioned, Defendant HUNTER NUZZI, Tax Registry No. 972142 (“NUZZI”), was employed as a police officer by the New York City Police Department.

20. At all times hereinafter mentioned Defendant NUZZI was acting within the scope of his employment as a Police Officer.

21. At all times hereinafter mentioned Defendant NUZZI was acting under color of his authority as a Police Officer in the 71st Precinct.

22. At all times hereinafter mentioned, Defendants JOHN DOE 1-3 were police officers with the New York City Police Department.

23. At all times hereinafter mentioned Defendants JOHN DOE 1-3 were acting within the scope of their employment as Police Officers.

24. At all times hereinafter mentioned Defendants JOHN DOE 1-3 were acting under color of their authority as Police Officers in the 71st Precinct.

Notice of Claim

25. On or about December 14, 2023, Plaintiff filed a Notice of Claim with the Comptroller of the City of New York in the manner and mode required by law.

26. The Notice of Claim contained the name and post office address of the Plaintiff, the nature of the claims, the time when, the place where and manner by which the claims arose, and the damage and injuries claimed to have been sustained.

27. More than thirty days have elapsed since presentment of the claims and defendant City of New York has not adjusted the claims within the statutory time period.

28. This action was commenced within one year and ninety days after the happening of the events upon which claims are based.

29. That Plaintiff has complied with conditions precedent applicable to the instant action.

30. That this action falls within one or more of the exceptions of CPLR §1602, including, but not limited to CPLR §1602 (11).The Notice of Claim was in writing and was sworn to by the plaintiff.

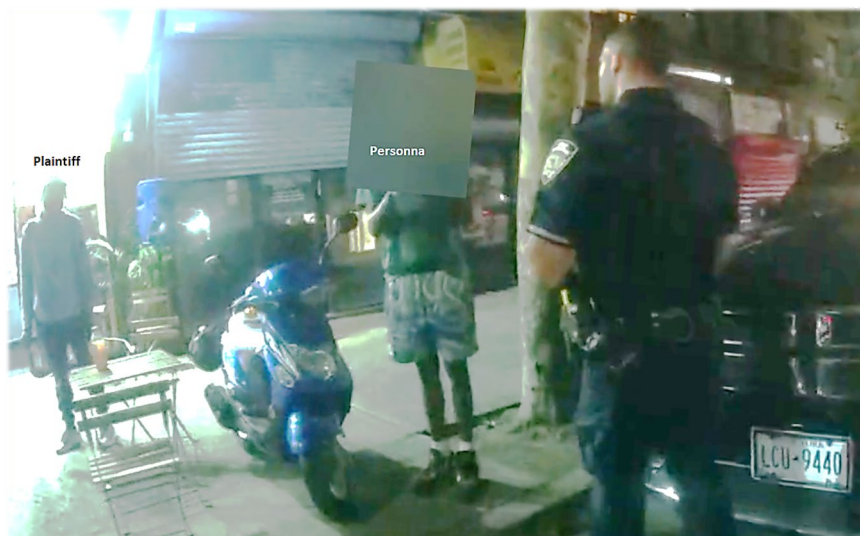
Facts Underlying Plaintiff's Claims

31. On August 16, 2023 at around and before 8:30 p.m., JEAN PIERRE was lawfully present at and in front of 592 New York Avenue in Brooklyn.

32. At all times relevant, a business named the Brooklyn Lunchbox was located at 592 New York Avenue in Brooklyn.

33. At all times relevant, Plaintiff worked delivery for the Brooklyn Lunchbox.

34. At around 8:30 p.m. on August 16, 2023, JEAN PIERRE was standing in front of the Brooklyn Lunchbox smoking a cigarette.



35. At around that time, several of the named Defendants approached and spoke with Dorice Personna at the direction of Defendant HAYWARD.

36. Personna fled, moving between Plaintiff and a passing bicyclist and into 592 New York Avenue.

37. Defendants, including HAYWARD, pursued Personna.

38. Defendant HAYWARD ran into and pushed Plaintiff while he was pursuing Personna.



39. Defendants, including HAYWARD, then grabbed Plaintiff and thrust him against the Brooklyn Lunchbox storefront.



40. Defendants, including HAYWARD, WALSH, and MELE swarmed Plaintiff, grabbing at him and, among other things, causing his face to strike the storefront.

41. Plaintiff was handcuffed by one or more of the Defendants.

42. Defendants then transported to the 71st Precinct Stationhouse.

43. Defendants arrested Plaintiff on claims for violating Penal Law §205.30: Resisting Arrest, a misdemeanor



punishable by up to a year in jail; PL §195.05: Obstruction of Governmental Administration in the 2nd Degree, a misdemeanor punishable by up to a year in jail; PL §265.01(2): Criminal Possession of a Weapon in the 4thdegree, a misdemeanor punishable by up to a year in jail; and PL §240.20 (1): Disorderly Conduct, a violation punishable by up to fifteen days in jail.

44. Plaintiff was not committing any crime, violation, or offense at the time Defendant accosted, assaulted, arrested, and imprisoned him.

45. Plaintiff was jailed and searched at the 71st Precinct Stationhouse.

46. While jailed at the 71st Precinct Stationhouse, Plaintiff received medical treatment for injuries caused by Defendants.

47. At the Stationhouse, individual Defendants prepared or allowed to be prepared false police reports accusing JEAN PIERRE of Resisting Arrest, Obstruction of Governmental

Administration in the 2nd Degree, Criminal Possession of a Weapon in the 4th degree, and Disorderly Conduct.

48. The individual Defendants, and each of them, knew the reports to be false.

49. Defendant MELE, among other things, prepared an Arrest Report and Complaint Report which falsely stated that Plaintiff “did interfere with officers attempting to place other deft into custody. [Plaintiff] stepped in front of officers putting his arms out stating "you can't."

50. Defendant CLARK reviewed and, despite being present and participating in Plaintiff's arrest and knowing the report to be false, approved the false Arrest Report and Complaint Report.

51. Defendant WALSH falsely reported she saw Plaintiff “step in the way and obstruct the path of [Defendant MELE] in the process of arrested [SIC] an apprehended other.”

52. Defendant MELE signed under penalty of perjury a Criminal Court Complaint stating Defendant WALSH's false report that she saw Plaintiff “step in the way and obstruct the path of [Defendant MELE] in the process of arrested [SIC] an apprehended other.”

53. Defendant MELE signed under penalty of perjury a Criminal Court Complaint stating Defendant WALSH's false report that Plaintiff pulled his arms and moved his body to avoid being placed in handcuffs.

54. Defendants provided or allowed to be provided false information to the Criminal Court and Kings County District Attorney's Office.

55. The false statements caused Plaintiff to be prosecuted under Kings County Criminal Court Docket Number CR-030156-23KN on charges of Resisting Arrest in violation Penal Law §205.30 and Obstruction of Governmental Administration in the 2nd Degree in violation of Penal Law PL §195.05.

56. Defendant MELE's false statements caused Plaintiff to be prosecuted under Kings County Criminal Court Docket Number CR-030156-23KN on false charges.

57. Defendant WALSH's false statements caused Plaintiff to be prosecuted under Kings County Criminal Court Docket Number CR-030156-23KN on false charges,.

58. Defendant CLARK's review and approval of the false statements caused Plaintiff to be prosecuted under Kings County Criminal Court Docket Number CR-030156-23KN on false charges.

59. Plaintiff was arraigned on August 17, 2023 and released on his own recognizance.

60. Plaintiff was, under threat of issuance of an arrest warrant and arrest, required to and did return to Criminal Court twice to contest the baseless charges.

61. All charges against Plaintiff were dismissed unconditionally on the motion of the Kings County District Attorney on November 16, 2023.

62. Plaintiff's constitutional rights were violated and he suffered loss of liberty, physical injuries and the fear, trauma, and humiliation of, among other things, being publicly accosted, assaulted, arrested, and imprisoned and of being prosecuted on false charges.

FIRST CAUSE OF ACTION FOR VIOLATING PLAINTIFF'S RIGHT
TO BE FREE FROM UNREASONABLE SEIZURES UNDER ARTICLE
ONE, SECTION TWELVE OF THE NEW YORK STATE CONSTITUTION

63. Plaintiff repeats and realleges the forgoing paragraphs as though fully stated here.

64. Defendants CITY, HAYWARD, WALSH, MELE, CLARK, NUZZI, and DOE 1-3 deprived JEAN PIERRE of rights secured by the Constitution of the State of New York, including, but not limited to Mr. Pierre's right to be free and secure in his person and his right to be free from arrest or search, except on probable cause or pursuant to warrant.

65. The Defendants detained, confined, and imprisoned Plaintiff without warrant or probable cause.

66. Plaintiff was aware of and did not consent to the confinement.

67. By the actions described above, Defendant THE CITY OF NEW YORK, deprived Plaintiff of his right to be free and secure in his person and his right to be free from arrest or search, except on probable cause or pursuant to warrant.

68. By the actions described above, Defendant HAYWARD, deprived Plaintiff of his right to be free and secure in his person and his right to be free from arrest or search, except on probable cause or pursuant to warrant.

69. By the actions described above, Defendant WALSH deprived Plaintiff of his right to be free and secure in his person and his right to be free from arrest or search, except on probable cause or pursuant to warrant.

70. By the actions described above, Defendant MELE deprived Plaintiff of his right to be free and secure in his person and his right to be free from arrest or search, except on probable cause or pursuant to warrant.

71. By the actions described above, Defendant CLARK deprived Plaintiff of his right to be free and secure in his person and his right to be free from arrest or search, except on probable cause or pursuant to warrant.

72. By the actions described above, Defendant NUZZI, deprived Plaintiff of his right to be free and secure in his person and his right to be free from arrest or search, except on probable cause or pursuant to warrant.

73. By the actions described above, Defendants JOHN DOE 1-3 deprived Plaintiff of his right to be free and secure in his person and his right to be free from arrest or search, except on probable cause or pursuant to warrant.

74. As a consequence thereof, Jean Pierre has been injured and demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

SECOND CAUSE OF ACTION FOR VIOLATING PLAINTIFF'S
RIGHT TO BE FREE FROM UNREASONABLE SEARCHES AND
SEIZURES UNDER NEW YORK STATE CIVIL RIGHTS LAW §8

75. Plaintiff repeats and realleges the foregoing paragraphs as though fully stated here.

76. Defendants CITY, HAYWARD, WALSH, MELE, CLARK, NUZZI, and DOE 1-3 deprived JEAN PIERRE of rights secured New York State Civil Rights Law §8, including, but not limited to Mr. Pierre's right to be free and secure in his person and his right to be free from arrest or search, except on probable cause or pursuant to warrant.

77. The Defendants detained, confined, and imprisoned Plaintiff without warrant or probable cause to believe a crime had been committed.

78. Plaintiff was aware of and did not consent to the confinement.

79. By the actions described above, Defendant THE CITY OF NEW YORK, deprived Plaintiff of his rights to be free and secure in his person, and to be free from arrest or search, except on probable cause or pursuant to warrant.

80. By the actions described above, Defendant HAYWARD deprived Plaintiff of his rights to be free and secure in his person, and to be free from arrest or search, except on probable cause or pursuant to warrant.

81. By the actions described above, Defendant WALSH deprived Plaintiff of his rights to be free and secure in his person, and to be free from arrest or search, except on probable cause or pursuant to warrant.

82. By the actions described above, Defendant MELE deprived Plaintiff of his rights to be free and secure in his person, and to be free from arrest or search, except on probable cause or pursuant to warrant.

83. By the actions described above, Defendant CLARK deprived Plaintiff of his rights to be free and secure in his person, and to be free from arrest or search, except on probable cause or pursuant to warrant.

84. By the actions described above, Defendant NUZZI, deprived Plaintiff of his rights to be free and secure in his person, and to be free from arrest or search, except on probable cause or pursuant to warrant.

85. By the actions described above, Defendants JOHN DOE 1-3 deprived Plaintiff of his rights to be free and secure in his person, and to be free from arrest or search, except on probable cause or pursuant to warrant.

86. As a consequence thereof, Jean Pierre has been injured and demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

THIRD CAUSE OF ACTION FOR
VIOLATING PLAINTIFF'S RIGHT TO BE FREE FROM
UNREASONABLE SEARCHES AND SEIZURES UNDER THE FOURTH AND
FOURTEENTH AMENDMENTS TO THE UNITED STATES CONSTITUTION

87. Plaintiff repeats and realleges the forgoing paragraphs as though fully stated here.

88. Defendants HAYWARD, WALSH, MELE, CLARK, NUZZI, and DOE 1-3 deprived JEAN PIERRE of rights secured by the United States Constitution, including, but not

limited to Mr. Pierre's right to be free and secure in his person and his right to be free from arrest or search, except on probable cause or pursuant to warrant.

89. By the actions described above, Defendant HAYWARD deprived Plaintiff of his rights secured by the Constitution and laws of the United States in violation of 42 U.S.C. §1983, including, but not limited to, his right to be free and secure in his person and his right to be free from arrest or search, except on probable cause or pursuant to warrant.

90. By the actions described above, Defendant WALSH deprived Plaintiff of his rights secured by the Constitution and laws of the United States in violation of 42 U.S.C. §1983, including, but not limited to, his right to be free and secure in his person and his right to be free from arrest or search, except on probable cause or pursuant to warrant.

91. By the actions described above, Defendant MELE deprived Plaintiff of his rights secured by the Constitution and laws of the United States in violation of 42 U.S.C. §1983, including, but not limited to, his right to be free and secure in his person and his right to be free from arrest or search, except on probable cause or pursuant to warrant.

92. By the actions described above, Defendant CLARK deprived Plaintiff of his rights secured by the Constitution and laws of the United States in violation of 42 U.S.C. §1983, including, but not limited to, his right to be free and secure in his person and his right to be free from arrest or search, except on probable cause or pursuant to warrant.

93. By the actions described above, Defendant NUZZI deprived Plaintiff of his rights secured by the Constitution and laws of the United States in violation of 42 U.S.C. §1983, including, but not limited to, his right to be free and secure in his person and his right to be free from arrest or search, except on probable cause or pursuant to warrant.

94. By the actions described above, Defendants DOE 1-3 deprived Plaintiff of his rights secured by the Constitution and laws of the United States in violation of 42 U.S.C. §1983, including, but not limited to, his right to be free and secure in his person and his right to be free from arrest or search, except on probable cause or pursuant to warrant.

95. As a consequence thereof, Jean Pierre has been injured and demands judgment against Defendants HAYWARD, WALSH, MELE, CLARK, NUZZI, and DOE 1-3 in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

FOURTH CAUSE OF ACTION FOR VIOLATING PLAINTIFF'S RIGHT
TO BE FREE FROM UNREASONABLE FORCE UNDER ARTICLE
ONE, SECTION TWELVE OF THE NEW YORK STATE CONSTITUTION

96. Plaintiff repeats and realleges the forgoing paragraphs as though fully stated here.

97. Defendants CITY, HAYWARD, WALSH, MELE, CLARK, NUZZI, and DOE 1-3 deprived JEAN PIERRE of rights secured by the Constitution of the State of New York, including, but not limited to, his right to be free from excessive and unreasonable force.

98. By the actions described above, Defendant CITY deprived Plaintiff of his rights secured by the Constitution of the State of New York, including, but not limited to, his right to be free from excessive and unreasonable force.

99. By the actions described above, Defendant HAYWARD deprived Plaintiff of his rights secured by the Constitution of the State of New York, including, but not limited to, his right to be free from excessive and unreasonable force.

100. By the actions described above, Defendant WALSH deprived Plaintiff of his rights secured by the Constitution of the State of New York, including, but not limited to, his right to be free from excessive and unreasonable force.

101. By the actions described above, Defendant MELE deprived Plaintiff of his rights secured by the Constitution of the State of New York, including, but not limited to, his right to be free from excessive and unreasonable force.

102. By the actions described above, Defendant CLARK deprived Plaintiff of his rights secured by the Constitution of the State of New York, including, but not limited to, his right to be free from excessive and unreasonable force.

103. By the actions described above, Defendant NUZZI deprived Plaintiff of his rights secured by the Constitution of the State of New York, including, but not limited to, his right to be free from excessive and unreasonable force.

104. By the actions described above, Defendants DOE 1-3 deprived Plaintiff of his rights secured by the Constitution of the State of New York, including, but not limited to, his right to be free from excessive and unreasonable force.

105. As a consequence thereof, Jean Pierre has been injured and demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

FIFTH CAUSE OF ACTION FOR VIOLATING PLAINTIFF'S
RIGHT TO BE FREE FROM UNREASONABLE FORCE
UNDER NEW YORK STATE CIVIL RIGHTS LAW §8

106. Plaintiff repeats and realleges the forgoing paragraphs as though fully stated here.

107. Defendants CITY, HAYWARD, WALSH, MELE, CLARK, NUZZI, and DOE 1-3 deprived JEAN PIERRE of rights secured by Civil Rights Law §8, including, but not limited to, his right to be free from excessive and unreasonable force.

108. By the actions described above, Defendant THE CITY OF NEW YORK, deprived Plaintiff of his right to be free from excessive and unreasonable force.

109. By the actions described above, Defendant HAYWARD deprived Plaintiff of his right to be free from excessive and unreasonable force.

110. By the actions described above, Defendant WALSH deprived Plaintiff of his right to be free from excessive and unreasonable force.

111. By the actions described above, Defendant MELE deprived Plaintiff of his right to be free from excessive and unreasonable force.

112. By the actions described above, Defendant CLARK deprived Plaintiff of his right to be free from excessive and unreasonable force.

113. By the actions described above, Defendant NUZZI, deprived Plaintiff of his right to be free from excessive and unreasonable force.

114. By the actions described above, Defendants JOHN DOE 1-3 deprived Plaintiff of his right to be free from excessive and unreasonable force.

115. As a consequence thereof, Jean Pierre has been injured and demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

SIXTH CAUSE OF ACTION FOR
VIOLATING PLAINTIFF'S RIGHT TO BE FREE FROM
UNREASONABLE FORCE UNDER THE FOURTH AND
FOURTEENTH AMENDMENTS TO THE UNITED STATES CONSTITUTION

116. Plaintiff repeats and realleges the forgoing paragraphs as though fully stated here.

117. Defendants HAYWARD, WALSH, MELE, CLARK, NUZZI, and DOE 1-3 deprived JEAN PIERRE of rights secured by the United States Constitution, including, but not limited to, his right to be free from excessive and unreasonable force.

118. By the actions described above, Defendant HAYWARD deprived Plaintiff of his rights secured by the Constitution and laws of the United States in violation of 42 U.S.C. §1983, including, but not limited to, his right to be free from excessive and unreasonable force.

119. By the actions described above, Defendant WALSH deprived Plaintiff of his rights secured by the Constitution and laws of the United States in violation of 42 U.S.C. §1983, including, but not limited to, his right to be free from excessive and unreasonable force.

120. By the actions described above, Defendant MELE deprived Plaintiff of his rights secured by the Constitution and laws of the United States in violation of 42 U.S.C. §1983, including, but not limited to, his right to be free from excessive and unreasonable force.

121. By the actions described above, Defendant CLARK deprived Plaintiff of his rights secured by the Constitution and laws of the United States in violation of 42 U.S.C. §1983, including, but not limited to, his right to be free from excessive and unreasonable force.

122. By the actions described above, Defendant NUZZI deprived Plaintiff of his rights secured by the Constitution and laws of the United States in violation of 42 U.S.C. §1983, including, but not limited to, his right to be free from excessive and unreasonable force.

123. By the actions described above, Defendants DOE 1-3 deprived Plaintiff of his rights secured by the Constitution and laws of the United States in violation of 42 U.S.C. §1983, including, but not limited to, his right to be free from excessive and unreasonable force.

124. As a consequence thereof, Jean Pierre has been injured and demands judgment against Defendants HAYWARD, WALSH, MELE, CLARK, NUZZI, and DOE 1-3 in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

SEVENTH CAUSE OF ACTION FOR
MALICIOUS PROSECUTION UNDER NEW YORK COMMON LAW

125. Plaintiff repeats and realleges the forgoing paragraphs as though fully stated here.

126. By the conduct described herein, Defendants CITY, HAYWARD, WALSH, MELE, CLARK, NUZZI, and DOE 1-3 maliciously prosecuted JEAN PIERRE.

127. Defendant CITY commenced or allowed the commencement of a Criminal Court proceeding against Plaintiff.

128. Defendant HAYWARD commenced or allowed the commencement of a Criminal Court proceeding against Plaintiff.

129. Defendant WALSH commenced or allowed the commencement of a Criminal Court proceeding against Plaintiff.

130. Defendant MELE commenced or allowed the commencement of a Criminal Court proceeding against Plaintiff.

131. Defendant CLARK commenced or allowed the commencement of a Criminal Court proceeding against Plaintiff.

132. Defendant NUZZI commenced or allowed the commencement of a Criminal Court proceeding against Plaintiff.

133. Defendants JOHN DOE1-3 commenced or allowed the commencement of a Criminal Court proceeding against Plaintiff.

134. Defendant CITY lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.

135. Defendant HAYWARD lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.

136. Defendant WALSH lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.

137. Defendant MELE lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.

138. Defendant CLARK lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.

139. Defendant NUZZI lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.

140. Defendants DOE 1-3 lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.

141. Defendant CITY acted with actual malice.

142. Defendant HAYWARD acted with actual malice.

143. Defendant WALSH acted with actual malice.

144. Defendant MELE acted with actual malice.

145. Defendant CLARK acted with actual malice.

146. Defendant NUZZI acted with actual malice.

147. Defendants JOHN DOE1-3 acted with actual malice.

148. The prosecution terminated in Plaintiff's favor on November 16, 2023 when all charges were unconditionally dismissed.

149. As a consequence thereof, Jean Pierre has been injured and demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

EIGHTH CAUSE OF ACTION FOR
VIOLATING PLAINTIFF'S RIGHT TO BE FREE FROM
MALICIOUS PROSECUTION UNDER THE FOURTH AND
FOURTEENTH AMENDMENTS TO THE UNITED STATES CONSTITUTION

150. Plaintiff repeats and realleges the forgoing paragraphs as though fully stated here.

151. By the conduct described herein, Defendants HAYWARD, WALSH, MELE, CLARK, NUZZI, and DOE 1-3, under 42 U.S.C. § 1983, deprived JEAN PIERRE of his right to be free from malicious prosecution under the Fourth and Fourteenth Amendments to the United States Constitution.

152. Defendant HAYWARD initiated or allowed the initiation of the prosecution against Plaintiff.

153. Defendant WALSH initiated or allowed the initiation of the prosecution against Plaintiff.

154. Defendant MELE initiated or allowed the initiation of the prosecution against Plaintiff.

155. Defendant CLARK initiated or allowed the initiation of the prosecution against Plaintiff.

156. Defendant NUZZI initiated or allowed the initiation of the prosecution against Plaintiff.

157. Defendants DOE 1-3 initiated or allowed the initiation of the prosecution against Plaintiff.

158. Defendant HAYWARD lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.

159. Defendant WALSH lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.

160. Defendant MELE lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.

161. Defendant CLARK lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.

162. Defendant NUZZI lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.

163. Defendants DOE 1-3 lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.

164. Defendant HAYWARD acted with actual malice.

165. Defendant WALSH acted with actual malice.

166. Defendant MELE acted with actual malice.

167. Defendant CLARK acted with actual malice.

168. Defendant NUZZI acted with actual malice.

169. Defendants JOHN DOE1-3 acted with actual malice.

170. The prosecution terminated in Plaintiff's favor on November 16, 2023 when all charges were unconditionally dismissed.

171. Plaintiff suffered a deprivation of liberty resulting from government seizure in the form of legal process, being compelled, under threat of issuance of an arrest warrant and arrest, to appear in Criminal Court to contest the baseless charge.

172. As a consequence thereof, Jean Pierre has been injured and demands judgment against Defendants HAYWARD, WALSH, MELE, CLARK, NUZZI, and DOE 1-3 in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

NINTH CAUSE OF ACTION FOR
VIOLATING PLAINTIFF'S FAIR TRIAL RIGHTS UNDER THE
FOURTEENTH AMENDMENT TO THE UNITED STATES CONSTITUTION

173. Plaintiff repeats and realleges the forgoing paragraphs as though fully stated here.

174. By the conduct described herein, Defendants HAYWARD, WALSH, MELE, CLARK, NUZZI, and DOE 1-3, under 42 U.S.C. § 1983, deprived JEAN PIERRE of his right to be free from fabricated evidence under the Fourteenth Amendment to the United States Constitution.

175. Defendant HAYWARD fabricated or allowed the fabrication of information and evidence.

176. Defendant WALSH fabricated or allowed the fabrication of information and evidence.

177. Defendant MELE fabricated or allowed the fabrication of information and evidence.

178. Defendant CLARK fabricated or allowed the fabrication of information and evidence.

179. Defendant NUZZI fabricated or allowed the fabrication of information and evidence.

180. Defendants DOE 1-3 fabricated or allowed the fabrication of information and evidence.

181. The information and evidence which Defendant HAYWARD fabricated or allowed to be fabricated was likely to influence a jury's verdict.

182. The information and evidence which Defendant WALSH fabricated or allowed to be fabricated was likely to influence a jury's verdict.

183. The information and evidence which Defendant MELE fabricated or allowed to be fabricated was likely to influence a jury's verdict.

184. The information and evidence which Defendant CLARK fabricated or allowed to be fabricated was likely to influence a jury's verdict.

185. The information and evidence which Defendant NUZZI fabricated or allowed to be fabricated was likely to influence a jury's verdict.

186. The information and evidence which Defendants DOE 1-3 fabricated or allowed to be fabricated was likely to influence a jury's verdict.

187. The information and evidence which Defendant HAYWARD fabricated or allowed to be fabricated was forwarded to the Kings County District Attorney's Office, the Clerk of the Kings County Criminal Court, and to Judges of the Kings County Criminal Court.

188. The information and evidence which Defendant WALSH fabricated or allowed to be fabricated was forwarded to the Kings County District Attorney's Office, the Clerk of the Kings County Criminal Court, and to Judges of the Kings County Criminal Court.

189. The information and evidence which Defendant MELE fabricated or allowed to be fabricated was forwarded to the Kings County District Attorney's Office, the Clerk of the Kings County Criminal Court, and to Judges of the Kings County Criminal Court.

190. The information and evidence which Defendant CLARK fabricated or allowed to be fabricated was forwarded to the Kings County District Attorney's Office, the Clerk of the Kings County Criminal Court, and to Judges of the Kings County Criminal Court.

191. The information and evidence which Defendant NUZZI fabricated or allowed to be fabricated was forwarded to the Kings County District Attorney's Office, the Clerk of the Kings County Criminal Court, and to Judges of the Kings County Criminal Court.

192. The information and evidence which Defendants DOE 1-3 fabricated or allowed to be fabricated was forwarded to the Kings County District Attorney's Office, the Clerk of the Kings County Criminal Court, and to Judges of the Kings County Criminal Court.

193. Plaintiff suffered a deprivation of liberty as a result of Defendant HAYWARD's acts and omissions.

194. Plaintiff suffered a deprivation of liberty as a result of Defendant WALSH's acts and omissions.

195. Plaintiff suffered a deprivation of liberty as a result of Defendant MELE's acts and omissions.

196. Plaintiff suffered a deprivation of liberty as a result of Defendant CLARK's acts and omissions.

197. Plaintiff suffered a deprivation of liberty as a result of Defendant NUZZI's acts and omissions.

198. Plaintiff suffered a deprivation of liberty as a result of Defendants DOE 1-3's acts and omissions.

199. As a consequence thereof, Jean Pierre has been injured and demands judgment against Defendants HAYWARD, WALSH, MELE, CLARK, NUZZI, and DOE 1-3 in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

TENTH CAUSE OF ACTION FOR
AGAINST DEFENDANT HAYWARD FOR SUPERVISORY LIABILITY

200. Plaintiff repeats and realleges the forgoing paragraphs as though fully stated here.

201. By the conduct described herein, Defendant HAYWARD, pursuant to 42 U.S.C. §1983, deprived JEAN PIERRE of his rights to be free from unreasonable stops,

searches and seizures; right to be free from unlawful prosecution; and right to be free of prosecution by fabricated evidence.

202. Defendant HAYWARD was at all times relevant the Commanding Officer of the 71st Precinct.

203. Defendant HAYWARD directly participated in the acts complained of herein.

204. Defendant HAYWARD at all times relevant, had direct supervisory responsibility over the acts and omissions of his subordinates participating in the events complained of herein, including the named Defendants.

205. Defendant HAYWARD directed his subordinates in the acts depriving Plaintiff of his rights.

206. Defendant HAYWARD set in motion the acts of his subordinates knowing that such acts deprived Plaintiff of his rights.

207. Defendant HAYWARD failed and refused to prevent or terminate his subordinates' acts depriving Plaintiff of his rights

208. Defendant HAYWARD engaged in conduct that showed a reckless or callous indifference to his subordinates' deprivation of Plaintiff's rights, and Defendant HAYWARD's conduct was so closely related to the deprivation of the person's rights as to be the moving force that caused Plaintiff's damages.

209. As a consequence thereof, Jean Pierre has been injured and demands judgment against Defendant HAYWARD in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

ELEVENTH CAUSE OF ACTION FOR FAILURE TO
INTERVENE TO PREVENT THE VIOLATION OF PLAINTIFF'S CIVIL RIGHTS

210. Plaintiff repeats and realleges the forgoing paragraphs as though fully stated here.

211. The individual Defendants, and each of them, are liable for directly participating in the acts described herein or for failing to intervene to prevent, end, or truthfully report the unlawful conduct to which JEAN PIERRE was subjected despite having a reasonable opportunity to do so.

212. Defendant HAYWARD failed to intervene to prevent, end, or truthfully report the unlawful conduct to which Mr. Pierre was subjected, despite having a reasonable opportunity to do so.

213. Defendant HAYWARD thereby displayed deliberate indifference to Plaintiff's rights, including but not limited to Plaintiff's right to be free from unreasonable stops, searches and seizures; right to be free unlawful prosecution; and right to be free of prosecution by fabricated evidence.

214. Defendant WALSH failed to intervene to prevent, end, or truthfully report the unlawful conduct to which Mr. Pierre was subjected, despite having a reasonable opportunity to do so.

215. Defendant WALSH thereby displayed deliberate indifference to Plaintiff's rights, including but not limited to Plaintiff's right to be free from unreasonable stops, searches and seizures; right to be free unlawful prosecution; and right to be free of prosecution by fabricated evidence.

216. Defendant MELE failed to intervene to prevent, end or report the unlawful and unconstitutional conduct to which Plaintiff was subjected despite the fact that he had opportunities to do so.

217. Defendant MELE thereby displayed deliberate indifference to Plaintiff's rights, including but not limited to Plaintiff's right to be free from unreasonable stops, searches and seizures; right to be free unlawful prosecution; and right to be free of prosecution by fabricated evidence.

218. Defendant CLARK failed to intervene to prevent, end or report the unlawful and unconstitutional conduct to which Plaintiff was subjected despite the fact that she had opportunities to do so.

219. Defendant CLARK thereby displayed deliberate indifference to Plaintiff's rights, including but not limited to Plaintiff's right to be free from unreasonable stops, searches and seizures; right to be free unlawful prosecution; and right to be free of prosecution by fabricated evidence.

220. Defendant NUZZI failed to intervene to prevent, end or report the unlawful and unconstitutional conduct to which Plaintiff was subjected despite the fact that she had opportunities to do so.

221. Defendant NUZZI thereby displayed deliberate indifference to Plaintiff's rights, including but not limited to Plaintiff's right to be free from unreasonable stops, searches and seizures; right to be free unlawful prosecution; and right to be free of prosecution by fabricated evidence.

222. Defendant DOE 1-3 failed to intervene to prevent, end or report the unlawful and unconstitutional conduct to which Plaintiff was subjected despite the fact that she had opportunities to do so.

223. Defendant DOE 1-3 thereby displayed deliberate indifference to Plaintiff's rights, including but not limited to Plaintiff's right to be free from unreasonable stops, searches and

seizures; right to be free unlawful prosecution; and right to be free of prosecution by fabricated evidence.

224. As a consequence thereof, Jean Pierre has been injured and demands judgment against Defendants HAYWARD, WALSH, MELE, CLARK, NUZZI, and DOE 1-3 in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

Request for Relief

WHEREFORE, Plaintiff respectfully requests that judgment be entered as follows:

- (A) Compensatory damages in an amount to be fixed at trial;
- (B) By reason of the wanton, willful, and malicious character of the conduct complained of herein, punitive damages from the individual Defendants in an amount to be fixed at trial;
- (C) An award to plaintiff of the costs and disbursements herein;
- (D) An award of attorney's fees under 42 U.S.C. §1988; and
- (E) Such other and further relief as this Court may deem just and proper.

Dated: October 9, 2024
Brooklyn, New York

The Law Office of Matthew Flamm
Attorney for Plaintiff
26 Court Street, Suite 2511
Brooklyn, New York 11242
(917) 495-2331



By: Matthew Flamm

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

-----X

JEAN PIERRE,

Plaintiff,

-against-

THE CITY OF NEW YORK, ET AL.,

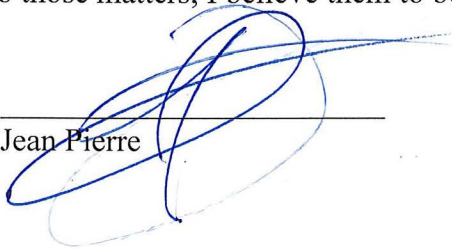
Defendants.

-----X

STATE OF NEW YORK)
 : SS.:
COUNTY OF KINGS)

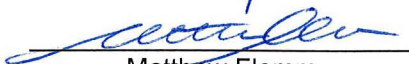
JEAN PIERRE, being duly sworn, deposes and says:

I am the plaintiff herein and have read the foregoing COMPLAINT and know the contents thereof; the same is true to my own knowledge, except as to matters therein stated to be alleged upon information and belief, and as to those matters, I believe them to be true.



Jean Pierre

October Sworn to before me
~~September~~ 9, 2024



Matthew Flamm

Notary Public State of New York
Registration No. 02FL4994806
Qualified in Kings County
Commission Expires 6/9/2026